

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CODY DELGADO,

Index No.: 504229/2014
Date Filed: 05/09/2014

Plaintiff,

-against-

**AMENDED
VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ADEKUNLE LONGE, in his official capacity
and individually, OFFICERS JOHN DOE and
OFFICERS JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in
their official capacity and individually,

Defendants.

-----X
Plaintiff, CODY DELGADO, by his attorneys, LAW OFFICES OF VEL
BELUSHIN, P.C. complaining of the Defendants, THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, IN HIS
OFFICIAL CAPACITY AND INDIVIDUALLY OFFICERS JOHN DOE AND OFFICERS
JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN
TO THE PLAINTIFF, IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, respectfully
alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times herein mentioned, Plaintiff, CODY DELGADO, was, and still is, a resident of the County of Kings, City and State of New York.

2. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, was, and still is, a municipal corporation.

3. At all times herein mentioned, Defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is an entity operated by Defendant, THE CITY OF NEW YORK, its agents, servants and employees.

4. Upon information and believe Defendant, POLICE OFFICER DAVE GUEVARA, resided and still resides in the City and State of New York.

5. That on August 12, 2013, and within the time prescribed by law, a sworn Notice of Claim stating, among other things the time when and the place where injuries and damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on plaintiff's behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

6. The Notice of Claim set forth the name and post office address of claimant and the claimant's attorneys, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damage and injuries sustained.

7. More than ninety (90) days have elapsed since the presentation of said claims and the defendant, THE CITY OF NEW YORK has not requested a hearing pursuant to Section 50-h of the General Municipal Law.

8. This action has been commenced within one year and ninety days after the cause of action occurred.

9. That at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, maintained THE NEW YORK CITY POLICE DEPARTMENT, as units and agencies of the city government, having the duty to protect life and property, prevent crime, preserve the public peace and enforce all the laws, ordinances and provisions of the City and State of New York.

10. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to adequately and properly test and/ or screen police officers and of THE NEW YORK CITY POLICE DEPARTMENT.

11. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly hired applicants for the position of police officer of THE NEW YORK CITY POLICE DEPARTMENT.

12. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly trained applicants for the position of police officer of THE NEW YORK CITY POLICE DEPARTMENT.

13. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly supervised

the activities of their police officers of THE NEW YORK CITY POLICE
DEPARTMENT.

14. The Defendant, THE CITY OF NEW YORK, by its agents, servants,
employees, agencies and/or departments carelessly, negligently and recklessly controlled
the activities of their police officers of THE NEW YORK CITY POLICE
DEPARTMENT.

15. The Defendant, THE CITY OF NEW YORK, by its agents, servants,
employees, agencies and/or departments carelessly, negligently and recklessly managed
the activities of their police officers of THE NEW YORK CITY POLICE
DEPARTMENT.

16. The Defendant, THE CITY OF NEW YORK, by its agents, servants,
employees, agencies and/or departments carelessly, negligently and recklessly maintained
the activities of their police officers of THE NEW YORK CITY POLICE
DEPARTMENT.

17. The Defendant, THE CITY OF NEW YORK, by its agents, servants,
employees, agencies and/or departments carelessly, negligently and recklessly inspected
the activities of their police officers of THE NEW YORK CITY POLICE
DEPARTMENT.

18. The Defendant, THE CITY OF NEW YORK, by its agents, servants,
employees, agencies and/or departments caused, permitted and allowed their police

officers of THE NEW YORK CITY POLICE DEPARTMENT to act in an unprofessional manner.

19. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers of THE NEW YORK CITY POLICE DEPARTMENT to act in a negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

20. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to take proper action in suspending and/or reprimanding their police officers of THE NEW YORK CITY POLICE DEPARTMENT.

21. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly continued to retain in their employment police officers of THE NEW YORK CITY POLICE DEPARTMENT clearly unfit to be police officers of THE NEW YORK CITY POLICE DEPARTMENT.

22. That all times hereinafter mentioned, Defendants, POLICE OFFICER ADEKUNLE LONGE IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, was an agent, servant and/or employee of THE NEW YORK CITY POLICE DEPARTMENT, an agency of Defendant, THE CITY OF NEW YORK.

23. That at all times hereinafter mentioned, Defendants, POLICE OFFICER ADEKUNLE LONGE IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, was acting within the scope of their employment, by Defendant, THE NEW YORK CITY POLICE DEPARTMENT, an agency of Defendant, THE CITY OF NEW YORK and were acting under the color of State Law.

24. That at all times hereinafter mentioned, Defendants, POLICE OFFICER ADEKUNLE LONGE IN HIS OFFICIAL CAPACITY AND INDIVIDUALLY, was acting within the scope of their employment with the permission and consent of Defendant, THE NEW YORK CITY POLICE DEPARTMENT through its agency with defendant, THE CITY OF NEW YORK.

25. That all times hereinafter mentioned, Defendants, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, were an agent, servant and/or employee of THE NEW YORK CITY POLICE DEPARTMENT, an agency of Defendant, THE CITY OF NEW YORK.

26. That at all times hereinafter mentioned, Defendants, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, were acting within the scope of their employment, by Defendant, THE NEW YORK CITY POLICE DEPARTMENT, an agency of Defendant, THE CITY OF NEW YORK and were acting under the color of State Law.

27. That at all times hereinafter mentioned, Defendants, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, were acting within the scope of their employment with the permission and consent of Defendant, THE NEW YORK CITY POLICE DEPARTMENT through its agency with defendant, THE CITY OF NEW YORK.

28. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to properly and adequately conduct investigations, obtain true facts and statements from witnesses and law enforcement officers.

29. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, was careless, reckless and negligent in failing to discover the true facts which led to the assault, battery and arrest of the Plaintiff, CODY DELGADO.

30. The Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, was further careless, reckless and negligent in the supervision of the activities of its agency, the Defendant, THE NEW YORK CITY POLICE DEPARTMENT.

31. The Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT by its agents, servants, employees, agencies and/or departments failed to take all necessary steps to prevent the false arrest, false imprisonment, excessive force, harassment, malicious prosecution denial of right to a fair trial and, personal injuries; Violation of Civil Rights pursuant to 42 U.S.C. Section 1981,

1982, 1983, 1985 and 1986 and more particularly protected under the 4th, 5th, 8th and 14th Amendments of the United States Constitution and parallel provisions of the New York State Constitution of Plaintiff, CODY DELGADO .

32. On June 25, 2013 at approximately 5:30 a.m. while Plaintiff, CODY DELGADO, was on Avenue U at or near the intersection with E15th Street, the City and State of New York, County of Kings, Plaintiff CODY DELGADO, was stopped by the Defendants, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, THE NEW YORK CITY POLICE DEPARTMENT. The Defendants, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, continuously sprayed mace and/or pepper spray into the Plaintiff's, CODY DELGADO, eyes which lasted approximately one minute. After the mace and/or pepper spray was stopped, the Defendants, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, THE NEW YORK CITY POLICE DEPARTMENT began to viciously and continuously strike the Plaintiff's, CODY DELGADO, face with a police hand held radio

causing the Plaintiff, CODY DELGADO, to fall onto the ground. Plaintiff, CODY DELGADO, was then arrested and taken to the hospital where he was hospitalized and underwent surgery.

33. At the aforesaid date time and place, the Defendants, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, performed a false arrest, false imprisonment, excessive force, harassment, malicious prosecution denial of right to a fair trial of the Plaintiff, CODY DELGADO, causing said Plaintiff to sustain serious injury, great pain and mental distress. That as a result of the Defendants, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, conduct the Plaintiff, CODY DELGADO, did suffer grievous bodily injuries, about the head, body and limbs which are of a permanent nature. Plaintiff, CODY DELGADO, became, and remains sick, sore, lame and disabled and did suffer and continues to suffer great physical and mental pain, and psychological injury and damage, for which he was confined to the hospital, bed and house, became disabled, which is of a permanent nature. Plaintiff, CODY DELGADO, has suffered and will continue to suffer a loss of enjoyment of life and emotional injuries which are permanent in nature. Plaintiff, CODY DELGADO,

sustained, serious injury, great fear, emotional harm, disgrace, anxiety, stress, embarrassment and loss of self-esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon him by Defendants, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, employed by the Defendant, THE NEW YORK CITY POLICE DEPARTMENT. Plaintiff, CODY DELGADO, has suffered and will continue to suffer a loss of enjoyment of life and emotional injuries which are permanent in nature.

34. That the Defendants', POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF IN THEIR OFFICIAL CAPACITY AND INDIVIDUALLY, employed by the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, conduct was a substantial factor in causing the incident and the Plaintiff's, CODY DELGADO, damages.

35. The aforesaid occurrence and resulting damages to the plaintiff, CODY DELGADO, were due to misconduct of the defendants herein.

36. Said occurrence and resulting injuries of Plaintiff, CODY DELGADO, were due without fault or wrongdoing on the part of the Plaintiff, CODY DELGADO, contributing thereto.

37. By reason of the foregoing, the Plaintiff, CODY DELGADO, has been damaged in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SECOND CAUSE OF ACTION

38. Plaintiff, CODY DELGADO, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

39. That on or about June 25, 2013 the Plaintiff, CODY DELGADO, was without just cause or provocation maliciously, recklessly and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious injury and harm to Plaintiff CODY DELGADO, due to conduct of the Defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

40. That said conduct constituted negligence of the Defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

41. That as a result of the aforesaid occurrence, Plaintiff, CODY DELGADO, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A THIRD CAUSE OF ACTION

42. Plaintiff, CODY DELGADO, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

43. That on or about June 25, 2013 the Plaintiff, CODY DELGADO, was falsely arrested, falsely imprisoned, became a victim of harassment, malicious prosecution, denial of right to a fair trial due to the negligence of the Defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

44. That said conduct constituted negligence of the Defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING

FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

45. That as a result of the aforesaid occurrence, Plaintiff, CODY DELGADO, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A FOURTH CAUSE OF ACTION

46. Plaintiff, CODY DELGADO, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

47. That on or about June 25, 2013 the Plaintiff, CODY DELGADO, was falsely arrested, falsely imprisoned, became a victim of excessive force, harassment, malicious prosecution, denial of right to a fair trial due to the reckless conduct of the Defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually OFFICER JOHN DOE AND OFFICER JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

48. That said conduct constituted reckless conduct of the Defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or

departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICER JOHN DOE AND OFFICER JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

49. That as a result of the aforesaid occurrence, Plaintiff, CODY DELGADO, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A FIFTH CAUSE OF ACTION

50. Plaintiff, CODY DELGADO, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

51. That on or about June 25, 2013, the Plaintiff, CODY DELGADO, was falsely arrested, falsely imprisoned, became a victim of harassment, malicious prosecution, denial of right to a fair trial due to the willful, wanton, reckless and/or malicious conduct of the Defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

52. That said conduct constituted willful, wanton, reckless and/or malicious conduct of the Defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

53. That as a result of the aforesaid occurrence, Plaintiff, CODY DELGADO, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SIXTH CAUSE OF ACTION

54. Plaintiff, CODY DELGADO, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

55. That on or about June 25, 2013 the Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, intentionally, recklessly

carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society, thereby inflicting serious bodily injury, mental and emotional distress upon Plaintiff, CODY DELGADO.

56. That as a result of the aforesaid occurrence, Plaintiff, CODY DELGADO, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A SEVENTH CAUSE OF ACTION

57. Plaintiff, CODY DELGADO, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

58. That on or about June 25, 2013, the Plaintiff, CODY DELGADO, was falsely arrested, falsely imprisoned, became a victim of excessive force, harassment, malicious prosecution, denial of right to a fair trial due to the negligent, careless and improper training, supervision and control of the police officers by the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT and defendant, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

59. That said conduct constituted negligent, careless and improper training, supervision and control of the Defendants, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendant, THE NEW YORK CITY POLICE DEPARTMENT and Defendants, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually.

60. That the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, due to the negligent, careless and improper training, supervision and control of police officers induced criminality.

61. That the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendant, THE NEW YORK CITY POLICE DEPARTMENT and Defendants, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, conduct was egregious as a matter of law.

62. That as a result of the aforesaid occurrence, Plaintiff, CODY DELGADO, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A EIGHTH CAUSE OF ACTION

63. Plaintiff, CODY DELGADO, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

64. As a result of the aforescribed actions, including the arrest and imprisonment of Plaintiff, CODY DELGADO, without probable cause, the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived Plaintiff, CODY DELGADO, of the rights, privileges and immunities protected under the 14th Amendment of the United States Constitution and parallel provisions of the New York State Constitution.

65. As a result of the aforescribed actions the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICER JOHN DOE

AND OFFICER JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived the Plaintiff, CODY DELGADO, of the right to be free from unreasonable search and seizures protected under the 4th Amendment of the United States Constitution and parallel provisions of the New York State Constitution.

66. As a result of the aforescribed actions the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived Plaintiff, CODY DELGADO, of his right to liberty without due process of law protected under the 5th and 14th Amendments of the United States Constitution and parallel provisions of the New York State Constitution.

67. As a result of the aforescribed actions the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived Plaintiff, CODY DELGADO, of his right to be free from cruel un unusual punishment protected under the 8th Amendments of the United States Constitution and parallel provisions of the New York State Constitution.

68. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C., sections 1981, 1983, 1985 and 1986.

69. The aforescribed acts of the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, was intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

70. That as a result of the aforesaid occurrence, Plaintiff, CODY DELGADO, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

AS AND FOR A NINTH CAUSE OF ACTION

71. Plaintiff, CODY DELGADO, repeats, reiterates and realleges each and every allegation as set forth above with the same force and effect as it hereinafter set forth at length.

72. As a result of the aforescribed acts the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER

ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, deprived Plaintiff, CODY DELGADO, of his right to be free from cruel and inhuman punishment and to be free from such conduct that is repugnant and shocking to the conscience; the actions of the individual defendants which included verbal abuse and harassment while Plaintiff CODY DELGADO, was in custodial situation to endure emotional pain that had no legitimate purpose other than to punish him and to cause him emotional pain and to suffer.

73. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C., sections 1981, 1983, 1985 and 1986.

74. The aforescribed acts of the Defendant, THE CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, including Defendants, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LONGE, in his official capacity and individually, OFFICERS JOHN DOE AND OFFICERS JANE DOE, FIRST AND LAST NAME BEING FICTITIOUS AS CURRENTLY UNKNOWN TO THE PLAINTIFF, in their official capacity and individually, were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's, CODY DELGADO, rights.

75. That as a result of the aforesaid occurrence, Plaintiff, CODY DELGADO, suffered the injuries and damages set forth in the paragraph 30 herein, all of his damages in an amount which exceeds the jurisdictional limits of all lower courts herein.

WHEREFORE, Plaintiff, CODY DELGADO, seeks damages herein on all causes of action, in sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with costs and disbursements of this action.

Dated: Brooklyn, NY
September 17, 2014

Yours,

LAW OFFICES OF VEL BELUSHIN, P.C.

By: _____

Vel Belushin, Esq.

Attorneys for Plaintiff

CODY DELGADO

1712 Kings Highway, 2nd Floor

Brooklyn, NY 11229

Tel: (718) 787-4470

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CODY DELGADO,

Index No.: 504229/2014
Date Filed: 05/09/2014

Plaintiff,

-against-

**ATTORNEY'S
VERIFICATION**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ADEKUNLE LONGE, in his official capacity
and individually, OFFICERS JOHN DOE and
OFFICERS JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in
their official capacity and individually,

Defendants.

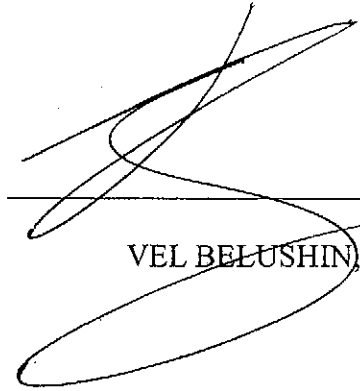
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VEL BELUSHIN, an attorney duly admitted to practice before the Courts of the
State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF VEL BELUSHIN, P.C., attorney of
record for the Plaintiff, **CODY DELGADO**, I have read the annexed **COMPLAINT** and
know the contents thereof, and the same are true to my knowledge, except those matters
therein which are stated to be alleged upon information and belief, and as to those matters
I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon
facts, records, and other pertinent information contained in my files.

This verification is made by me because the Plaintiff, **CODY DELGADO**, is not
presently in the county wherein I maintain my office.

DATED: Brooklyn, New York
September 17, 2014



VEL BELUSHIN, ESQ.

Index No.: 504229/2014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF **KINGS**

-----X
CODY DELGADO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ADEKUNLE LOMGE,
OFFICERS JOHN DOE and OFFICER JANE DOE, First and Last Name Being
Fictitious as Currently Unknown to the Plaintiff, in their official
capacity and individually,

Defendants.

-----X.

SUPPLEMENTAL SUMMONS AND AMENDED COMPLAINT

LAW OFFICES OF VEL BELUSHIN, P.C.

Attorneys for Plaintiff

CODY DELGADO

1712 Kings Highway, Suite 2

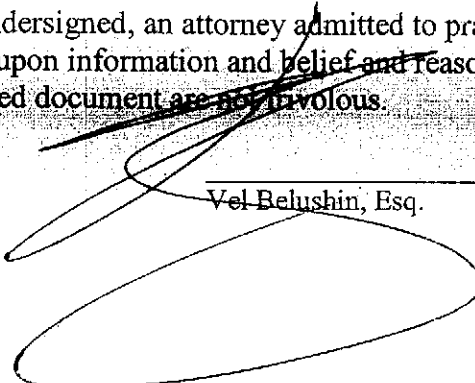
Brooklyn, New York 11229

(718) 787-4470

TO: SEE RIDER

Pursuant to 22NYCR 130-1.1 the undersigned, an attorney admitted to practice in the courts of New York State, certifies that upon information and belief and reasonable inquiry, the contents contained in the annexed document are not frivolous.

Dated: ~~September 17, 2014~~



Vel Belushin, Esq.